

Amendment No. 1 to SB2645

Watson
Signature of Sponsor

AMEND Senate Bill No. 2645

House Bill No. 1820*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 8-10-102(a)(1), is amended by adding the following as a new subdivision:

(F) If elected or appointed to the office of constable on or after January 1, 2029, have graduated from a Tennessee POST-approved certified law enforcement training academy; provided, however, that this subdivision (a)(1)(F) does not apply to a person who has held the office of constable for one (1) complete term and is reelected to the office of constable on or after January 1, 2029.

SECTION 2. Tennessee Code Annotated, Section 8-10-102(b)(1)(A)(ii), is amended by deleting the subdivision and substituting instead:

(ii) A letter from a Tennessee licensed healthcare provider qualified in the psychiatric or psychological field certifying the candidate as being free from any impairment, as set forth in the current edition of the Diagnostic and Statistical Manual of Mental Disorders (DSM) of the American Psychiatric Association at the time of the examination, that would, in the professional judgment of the examiner, affect the candidate's ability to perform an essential function of the job, with or without a reasonable accommodation. In the event that the candidate seeks election to the office of constable by the county legislative body to fill a vacancy in office, the same letter must be filed with the county clerk prior to the election.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.